

## TENTATIVE RULINGS

DEPT. CM7

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## TENTATIVE RULING

**Date: 07/15/2026**

| Case #   | Case Name      | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
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| 01348724 | Rivas –Probate | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Rivas – Probate 01348724</p> <p><b>Calendar No.: 1</b></p> <hr/> <p style="text-align: center;"><b>Date: 07/15/2026</b></p> <hr/> <p style="text-align: center;"><b>MOTION TO REQUEST ABATEMENT OF ALL PROCEEDINGS (ROA 520)</b></p> <p>Pursuant to Probate Code section 854, Petitioner Sarai Mejia Villa ("Petitioner") moves for an order to abate all proceedings currently pending in the instant Probate Action until the outcome of the Civil Action she commenced on 3/21/23 (O.C.S.C. Case No. 30-2023-01314626).</p> <p><u>Abatement of All Pending Proceedings</u></p> <p>Probate Code section 854 provides as follows:</p> <p style="padding-left: 40px;">If a civil action is pending with respect to the subject matter of a petition filed pursuant to this chapter this part<sup>1</sup> and jurisdiction has been obtained in the court where the civil action is pending prior to the filing of the petition, upon request of any party to the civil action, the court shall abate the petition until the conclusion of the civil action. This section shall not apply if the court finds that the civil action was filed for the purpose of delay.</p> |

Footnote 1. So in enrolled bill.

(Emphasis added.)

Probate Code section 854 is only applicable to petitions brought under Part 19 of Division 2 of the Probate Code (i.e., 850 Petitions.) (*Bellows v. Bellows* (2011) 196 Cal.App.4th 505, 512-513.) Thus, Petitioner's request to abate **all currently pending proceedings** must be **denied**.

In the moving papers, Petitioner argues that the outcome of the Civil Action will affect the final distribution of Decedent's estate. (See e.g., ROA 520, Mot., 3:19-22.) Even if such assertion is true, Probate Code section 854 cannot be used to abate the administration of an estate. Nonetheless, a final distribution cannot be ordered until "the estate is in a condition to be closed." (Prob. Code § 11640.) Arguably, the estate will not be in a condition to be closed until the resolution of the Civil Action and/or the 850 Petition.

#### Abatement of 850 Petition

The court's records reflect only one 850 Petition pending. (ROA 512.)

The moving papers are supported by a single declaration that states only that counsel met and conferred before filing the motion. The moving papers do not describe the causes of action pending in the Civil Action or establish that such causes of action relate to the subject matter of the 850 Petition. Instead, the moving papers conclusively state that Petitioner's "Marvin Claim [in the Civil Action] is directly probative, related to, and controlling to issues within the 850 Petition." (ROA 520, Mot., 3:19-20.)

A trial court has "no obligation to undertake its own search of the record 'backwards and forwards to try to figure out how the law applies to the facts' of the case. [Citations.] Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934.)

Though not obligated to do so, the court did locate and read the Third Amended Complaint pending in the Civil Action (ROA 283) (the "TAC"). On its own motion, the court takes judicial notice of the TAC.

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|          |                   | <p>In the Civil Action, Petitioner is seeking to establish her fifty percent (50%) ownership of specified assets that were allegedly held in Decedent's name until Respondent interfered. In the instant Probate Action, Petitioner is seeking to establish that Decedent's estate has a fifty percent (50%) ownership in the same assets. Both actions involve the same real and personal properties, and both actions necessitate a determination that these assets belonged to Decedent (as opposed to his brother) and Petitioner. Thus, the court finds that the Civil Action concerns the same subject matter as the 850 Petition.</p> <p>Accordingly, the court <b>must</b> stay the 850 Petition (ROA 512) pursuant to Probate Code section 584.</p> <p><u>Scope of Abatement of 850 Petition</u></p> <p>The 850 Petition includes several additional causes of action that are not made pursuant to Section 850.</p> <p>Probate Code section 855 states, "An action brought under this party may include claims, causes of action, or matters that are normally raised in a civil action to the extent that the matters are related factually to the subject matter of a petition filed under this part."</p> <p>Thus, to the extent the additional causes of action in the 850 Petition (ROA 512) are related factually, such causes of action may also be stayed pursuant to Probate Code section 854.</p> <p><b>Counsel should be prepared to discuss whether all causes of action in the 850 Petition should be abated or only certain causes of action. Alternatively, counsel may request time to further brief such issue.</b></p> |
| 01421574 | Pendleton - Trust | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Pendleton - Trust 01421574</p> <p><b>Calendar No.: 2</b></p> <p style="text-align: center;"><b>Date: 07/15/2026</b></p> <hr/> <p style="text-align: center;"><b>MOTION TO COMPEL FURTHER RESPONSE TO FORM INTERROGATORY 17.1 (ROA 49)</b></p> <p>Respondent Cynthia L. Russell ("Respondent") moves to compel Petitioner Jacquelyn Pendleton by and through her Power of Attorney Mary E. Mills, ("Petitioner") to further respond to Form Interrogatory 17.1 as it pertains to Requests</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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|  | <p>for Admission Nos. 13 and 14 (collectively, the "Subject RFA").</p> <p>Request for Admission No. 13 asks Petitioner to "Admit that YOUR PETITION is time-barred by the 1-year statute of limitations set forth in California Code of Civil Procedure section 366.2."</p> <p>Request for Admission No. 14 asks Petitioner to "Admit that the 1-year statute of limitations for bringing YOUR claim of unpaid spousal support is not subject to tolling based on California Code of Civil Procedure section 366.3."</p> <p>Petitioner responded to each of the Subject RFA with a denial.</p> <p>Form Interrogatory 17.1 states as follows:</p> <p>17.1 Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission:</p> <ul style="list-style-type: none"><li>(a) state the number of the request;</li><li>(b) state all facts upon which you base your response;</li><li>(c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and</li><li>(d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing.</li></ul> <p>With respect to each of the Subject RFA, Petitioner responded to Form Interrogatory 17.1 in relevant party as follows:</p> <ul style="list-style-type: none"><li>(b) All facts support the contention that the statute of limitations does not apply to this matter.</li><li>(c) Mary Mills</li><li>(d) See Order overruling demurrer on statute of limitations, dated July 2, 2025.</li></ul> <p>In meeting and conferring, Respondent's counsel pointed out that said responses do not comply with Code of Civil Procedure section 2030.220(a), which requires responses to be as complete and straight forward as the information reasonably available to the responding party permits. Specifically,</p> |
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|  |  | <p>Respondent's counsel asserted that Petitioner failed to state all facts that support Petitioner's contention that the statute of limitations does not apply.</p> <p>In response, Petitioner's counsel stated that it was sufficient to incorporate by reference the court's order overruling the demurrer on statute of limitations grounds.</p> <p>In overruling the demurrer, the court stated that "it is not clear from the face of the Petition whether the action to enforce the spousal support order is time-barred by section 366.2" (ROA 19.) The demurrer tests only the sufficiency of the petition, and the court's ruling the demurrer is limited to the four corners of the pleading. Thus, contrary to Petitioner's position, the court's ruling on the demurrer is not a finding as to whether a statute of limitations defense may ultimately be successful.</p> <p>Respondent may still claim a statute of limitations as an affirmative defense and may raise it at trial and/or in a motion for summary judgment. Thus, Respondent is still entitled to discovery regarding such issue.</p> <p>Petitioner must state all facts, and identify all witnesses and documents, that support her denial of the Subject RFA. Reference to the court's ruling on the demurrer is not sufficient.</p> <p>The motion to compel further response to Form Interrogatory 17.1 as it pertains to the Subject RFA is <b>GRANTED</b>. Petitioner <b>shall</b> serve a further response within 10 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing.</p> <p>"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2030.300(d).) The court finds no substantial justification for Petitioner's opposition to this motion.</p> <p>The court imposes reasonable attorney's fees and costs in the total amount of <b>\$2,080.00</b> against Petitioner, payable within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing.</p> |
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|          |                  | Counsel for Respondent is ordered to serve a notice of ruling and may elect to submit a proposed Order After Hearing.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 01391605 | Bonner - Probate | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Bonner - Probate 01391605</p> <p><b>Calendar No.:</b> 3</p> <hr/> <p style="text-align: center;"><b>Date: 07/15/2026</b></p> <hr/> <p style="text-align: center;"><b>MOTION TO BE RELIEVED AS COUNSEL (ROA 49)</b></p> <p>Attorney William K. Sweeney seeks to be relieved as counsel for Administrator Pal Lengyel-Leahu.</p> <p>The motion is <b>GRANTED</b>.</p> <p>This motion is continued from 3/11/26 for compliance with California Rules of Court, Rule 3.1362 and Orange County Local Rule 601.21.</p> <p>The court appreciates that counsel has served the citation. It not clear whether the client has returned the signed Notice and Acknowledgement of Receipt, which would complete the service. Nonetheless, compliance with Local Rule 601.21 is no longer required since the court appointed a new Administrator on 7/2/26.</p> <p>The court notes that counsel has served all three mandatory forms (i.e., MC-051, MC-052, and MC-053) required by California Rules of Court, Rule 3.1362. (ROA 76.) The court's records do not reflect that the Order was filed.</p> <p>Counsel <b>shall</b> file the Order Granting Attorney's Motion to Be Relieved – Civil (MC-053) for the court to sign and shall ensure that the client's current or last known address is stated therein.</p> <p>Withdrawal is effective upon proof of service of the signed Order Granting Attorney's Motion to Be Relieved – Civil (MC-053).</p> |

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|          |                | [Motion Type]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 01346315 | Hill - Probate | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Hill - Probate 01346315</p> <p><b>Calendar No.: 5</b></p> <p style="text-align: center;"><b>Date: 07/15/2026</b></p> <hr/> <p style="text-align: center;"><b>MOTIONS TO COMPEL FURTHER RESPONSES TO<br/>DISCOVERY AND MOTION TO DEEM REQUESTS FOR<br/>ADMISSION ADMITTED (ROAs 464, 465, 466)</b></p> <p>Maurcus Washington brings three discovery motions: a motion to deem admitted request for admissions; a motion to compel responses to form interrogatories; and a motion to compel responses to requests for production of documents.</p> <p><u>Re Service of Discovery</u></p> <p>The evidence before the court is that Mr. Washington's counsel propounded firsts sets of requests for admission, form interrogatories, and requests for production of documents on Beatriz Johnson on 2/25/26 via electronic service. (Friedman Decls., ¶¶ 3-4 and Exs. A and B.)</p> <p>Ms. Johnson is a self-represented party. Her attorney substituted out of the case on 5/6/25 (ROA 128), nearly nine months before the discovery was served.</p> <p>Self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." (Cal. Rules of Court., Rule 2.251(c)(3)(B).) Express consent to receive electronic service may be given in one of two ways: (1) by filing and serving a notice of consent, or (2) by affirming consent through an electronic filing service provider. (Code Civ. Proc. § 1010.6(c)(3).)</p> <p>In his moving papers, Mr. Washington states that Ms. Johnson "revoked" her consent to electronic service in the process of meeting and conferring over the subject discovery. However, the court's records do not reflect that Ms. Johnson ever expressly consented to electronic service.</p> |

While represented by counsel, Ms. Johnson was mandated to receive electronic service. (Code Civ. Proc. § 1010.6(b)(2).) However, upon becoming self-represented, Ms. Johnson was no longer required to receive electronic service. Moreover, Ms. Johnson was not required to revoke the mandatory consent once her attorney substituted out. Only someone who has expressly opted in to receive electronic service is required to expressly opt out. (Code Civ. Proc. § 1010.6(c)(4).)

Thus, the subject discovery was not properly served on Ms. Johnson.

On 7/8/26, counsel for Mr. Washington filed notices of non-opposition which indicate that Ms. Johnson has since served unverified responses to form interrogatories and verified responses to requests for admission. (ROA 547 and 549.) Thus, as to such discovery, Ms. Johnson has waived defective service.

#### **MOTION TO COMPEL RESPONSE TO FORM INTERROGATORIES (ROA 464)**

Code of Civil Procedure section 2030.290(b) provides that “[i]f a party to whom interrogatories are directed fails to serve a timely response...[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories.”

After the filing of this motion, Ms. Johnson served unverified responses to form interrogatories. (ROA 547.) Such act waived defective service. Nonetheless, as to the substance of the responses, unverified responses are tantamount to no response at all. (*Melendez v. Superior Ct.* (2013) 215 Cal.App.4th 1343, 1348.)

Based on the foregoing, Mr. Washington’s motion to compel responses to form interrogatories is **GRANTED**.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civil Procedure section 2030.290(c).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested



discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, Rule 3.1348(a).)

In connection with the motion to compel further responses to form interrogatories, the court imposes reasonable sanctions of **\$2,460** against Ms. Johnson, payable to Lora S. Friedman, A Professional Law Corporation, within 30 days of notice of ruling, extended for method of service, or by any further date as agreed upon by the parties in writing.

**MOTION TO DEEM REQUESTS FOR ADMISSION  
ADMITTED (ROA 466)**

On 7/8/26, Mr. Washington filed a Notice of Non-Opposition and informed the court that Ms. Johnson served Code compliant responses to the requests for admission on 7/7/26. (ROA 549.) Mr. Washington concedes that said service renders the instant motion to compel moot pursuant to Code of Civil Procedure section 2033.280(c).

“It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc. § 2033.280(c).)

In connection with the motion to deem requests for admission admitted, the court imposes reasonable sanctions of **\$2,460** against Ms. Johnson, payable to Lora S. Friedman, A Professional Law Corporation, within 30 days of notice of ruling, extended for method of service, or by any further date as agreed upon by the parties in writing.

**MOTION TO COMPEL RESPONSE TO REQUEST FOR  
PRODUCTION (ROA 465)**

Code of Civil Procedure section 2031.300(b) provides that “[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it...[t]he party making the demand may move for an order compelling response to the demand.”

As discussed above, service of the request for production of documents was improperly served on Ms. Johnson electronically. Mr. Washington’s counsel has informed the court that Ms. Johnson has not served a timely response to the request for production, to date. (ROA 551.) Thus, Ms. Johnson has not waived improper service of the requests for production of documents.

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|          |                 | <p>Moreover, the failure to file a written opposition or appear at the hearing cannot be deemed an admission that the motion was proper or that sanctions should be awarded. (Cal. Rules of Court, Rule 3.1348(B).)</p> <p>The motion to compel further responses to requests for production is <b>DENIED</b>.</p> <p>Counsel for Mr. Washington is ordered to serve notice of ruling on all three motions.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 01430606 | Collins - Trust | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Collins - Trust 01430606</p> <p><b>Calendar No.:</b> 6</p> <hr/> <p style="text-align: center;"><b>Date: 07/15/2026</b></p> <hr/> <p style="text-align: center;"><b>MOTION FOR LEAVE TO AMEND (ROA 50)</b></p> <p>Petitioner Guy Collins ("Petitioner") moves for leave to amend his First Amended Petition and file the proposed Second Amended Petition attached as Exhibit A to the moving papers.</p> <p>The motion is opposed by Respondent Kelly Collins ("Respondent").</p> <p><u>Proposed Eighth Cause of Action</u></p> <p>Petitioner seeks to add an eighth cause of action for "Disinheritance of [Respondent] from the Estate of Joseph Eugene Collins" pursuant to Probate Code section 259 and Welfare and Institutions Code section 15610.30.</p> <p>Probate Code section 259 provides a remedy, not an independent cause of action. Specifically, Probate Code section 259 provides a forfeiture remedy in connection with an underlying cause of action for elder abuse.</p> <p>Furthermore, by its plain language, Probate Code section 259 is only available when the abused elder has passed away. It provides conditions by which a person "shall be deemed to have predeceased a <b>decedent</b>." (Emphasis added.)</p> <p>Notwithstanding the liberal policy in favor of granting leave to amend, the court has discretion to deny leave to amend where the proposed amendment is legally futile. (<i>Jo Redland Tr., U.A.D. 4-6-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th</p> |

142, 161-162; see also *California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280 [It is proper to deny leave to amend when the proposed amendment fails to state facts sufficient to constitute a cause of action.] )

Thus, Petitioner's motion for leave to add the proposed eighth cause of action is **DENIED**.

Specifically, the court denies the request to make the following proposed amendments that pertain to the eighth cause of action:

- Page 2, lines 18-23;
- Paragraphs 153-172; and
- Prayer for Relief, paragraph 8.

#### Other Proposed Amendments

Petitioner further proposes to amend the pleading to add paragraphs 15, 33-34, 37-41, and 68-86. It is not clear whether these additions are necessary without the eighth cause of action. Moreover, said paragraphs appear to set forth new evidence to support the factual claims already made in the First Amended Petition. Thus, the proposed amendments do not readily appear to be necessary.

Similarly, the proposed amendments to the Prayer for Relief seem to consist in part of prayers for relief already included in the First Amended Petition.

The moving party must file a separate declaration which specifies: "(1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier." (CRC, Rule 3.1324.)

Here, the declaration of Petitioner's counsel in support of the motion does state the effect of each of the proposed amendments, nor does it state why each of the proposed amendments would be necessary and proper.

Thus, the court **DENIES** Petitioner's request for leave to make the remaining proposed amendments, namely the following:

- Paragraph 15;
- Paragraphs 33-34;
- Paragraphs 37-41;
- Paragraphs 68-86; and
- Prayer for Relief, paragraphs 9-12.

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|          |                    | <p><u>Opposition to Motion</u></p> <p>In opposition to this motion, Respondent claims that the motion for leave should be denied because Petitioner waited until several months after discovery of the new facts to make the amendments and because the amendments would necessitate additional discovery and costs. The court finds such arguments unpersuasive.</p> <p>Courts may permit amendments at any stage in the proceedings, up to and including trial, so long as there is no prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i>(2003) 109 Cal.App.4th 739, 761.) Mere proximity to trial is not a sufficient reason to deny leave to amend, particularly where the moving party is the plaintiff. (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 967.)</p> <p>Increased discovery and attorneys' fees are not sufficient "prejudice." As one appellate court explained: "it seems unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend." (<i>Landis v. Superior Court</i> (1965) 232 Cal.App.2d 548, 557.)</p> <p>Respondent has not shown any resulting prejudice that warrants denial of this motion. Nonetheless, the motion must be denied for reasons stated above.</p> <p>Before bringing any new motion for leave to amend, Petitioner is <b>ordered</b> to make a good faith attempt to meet and confer with Respondent as to whether the parties can reach a stipulation as to any amendments.</p> <p>Petitioner is ordered to give notice of this ruling.</p> |
| 01415738 | Richardson - Trust | <p style="text-align: center;"><b>TENTATIVE RULING</b></p> <p><b>Case:</b> Richardson - Trust 01415738</p> <p><b>Calendar No.: 8</b></p> <p style="text-align: center;"><b>Date: 07/15/2026</b></p> <hr/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

**MOTIONS TO COMPEL FURTHER RESPONSES TO  
DISCOVERY AND MOTION DEEM REQUESTS FOR  
ADMISSION ADMITTED (ROAs 57, 61, 66, 69)**

Petitioner Ryan Swartout ("Petitioner") brings the following motions: (1) motion for an order compelling responses to form interrogatories set; (2) motion for an order compelling responses to special interrogatories set one; (3) motion to deem facts admitted in the requests for admissions set one; and (4) motion to compel responses to requests for production of documents set one. All foregoing motions are **GRANTED**.

The evidence before the court is that on 7/14/25, Petitioner's counsel propounded the following discovery on Respondent Bryce A. Richardson ("Respondent"): (1) form interrogatories set one; (2) special interrogatories set one; (3) requests for admissions set one; and (4) requests for production of documents set one. (Allen Decls., ¶ 10.) Responses to all the discovery requests were due 08/18/25. (Code Civ. Proc., § 2033.250; Code Civ. Proc., § 2030.260; Code Civ. Proc., § 2030.260; Code Civ. Proc., § 2031.260; Code Civ. Proc., § 1013.) Petitioner's counsel emailed Respondent on 10/17/25 to inquire about the discovery responses but did not receive any response. (Allen Decls., ¶ 11.) Respondent has failed to submit any responses to any of the discovery requests. (Allen Decls., ¶ 12.)

**I. MOTION TO COMPEL RESPONSES TO FORM  
INTERROGATORIES (ROA 57)**

Code of Civil Procedure section 2030.290 states that "[i]f a party to whom interrogatories are directed fails to serve a timely response...(b) [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories."

Respondent has failed to serve any response to Form Interrogatories Set One. (Allen Decl., ¶ 12.)

The motion to compel responses is **granted**.

Pursuant to Code of Civil Procedure section 2030.290 (c), "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Code of Civil Procedure section 2023.030 states that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process... pay the reasonable expenses, including

attorney's fees, incurred by anyone as a result of that conduct."

The court finds the time spent on this motion and the hourly rate of Mr. Rodono to be reasonable, excepting that there was no opposition motion, and thus the hour of work expected to review it and draft a reply will not contribute to the total sum of the sanctions.

The court imposes monetary sanctions against Respondent Respondent Richardson in the amount of \$2,180 (\$545ph x 4 hours) in attorney's fees and \$60.00 in costs, for a total of **\$2,240.00**.

## **II. MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES (ROA 61)**

Code of Civil Procedure section 2030.290 states that "[i]f a party to whom interrogatories are directed fails to serve a timely response...(b) [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories."

Respondent has failed to serve any response to Special Interrogatories Set One. (Allen Decl., ¶ 12.)

The motion to compel responses is **granted**.

Pursuant to Code of Civil Procedure section 2030.290 (c), "[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Code of Civil Procedure section 2023.030 states that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

The court finds the time spent on this motion and the hourly rate of Mr. Rodono to be reasonable, excepting that there was no opposition motion, and thus the hour of work expected to review it and draft a reply will not contribute to the total sum of the sanctions.

The court imposes monetary sanctions against Respondent Respondent Richardson in the amount of \$327 (\$545ph x .6 hours) in attorney's fees and \$60.00 in costs, for a total of **\$387.00**.

### **III. MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED (ROA 66)**

Code of Civil Procedure section 2033.280 (c) states that "the court shall make the order [to deem requests for admission admitted], unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220."

To date, Respondent has failed to serve any response to the requests for admission. (Allen Decl., ¶ 12.)

Based on the foregoing, the court **deems admitted** request for admissions set one.

Further, Code of Civil Procedure section 2033.280 (c) states that "[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." Code of Civil Procedure section 2023.030 states that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

The court finds the time spent on this motion and the hourly rate of Mr. Rodono to be reasonable, excepting that there was no opposition motion, and thus that the hour of work expected to review it and draft a reply will not contribute to the total sum of the sanctions. (Allen Decl., ¶ 13.) The court imposes monetary sanctions against Respondent Richardson in the amount of \$381.5 (\$545ph x .7 hours) in attorney's fees and \$60.00 in costs, for a total of **\$441.50**.

### **IV. MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA 69)**

Code of Civil Procedure section 2031.300 states that "[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it... (b) The party making the demand may move for an order compelling response to the demand."

To date, Respondent has failed to serve any response to the requests for production. (Allen Decl., ¶ 12.)

Based on the foregoing, the motion to compel responses to requests for production is **granted**.

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|  |  | <p>Further, Code of Civil Procedure section 2031.300 (c) states that "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Code of Civil Procedure section 2023.030 states that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."</p> <p>The court finds the time spent on this motion and the hourly rate of Mr. Rodono to be reasonable, excepting that there was no opposition motion, and thus that the hour of work expected to review it and draft a reply will not contribute to the total sum of the sanctions. (Allen Decl., ¶ 13.) The court imposes monetary sanctions against Respondent Richardson in the amount of \$ 272.5 (\$545ph x .5 hours) in attorney's fees and \$60.00 in costs, for a total of <b>\$332.50</b>.</p> <p>Counsel for Petitioner is <b>ordered</b> to give notice of ruling.</p> |
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